IN THE NATIONAL COMPANY LAW TRIBUNAL, AHMEDABAD
COURT - 2

ITEM No301

CA(CAA)/64(AHM)2022

Proceedings under Section 230-232 of Co. Act, 2013

IN THE MATTER OF:

Devendra Padamchand Jain Liquidator of Asis Logistics Ltd (Under Liquidation) **.....Applicant**

.....Respondent

Order delivered on 12/04/2023

Coram:

Deep Chandra Joshi, Hon'ble Member(J)
Ajai Das Mehrotra, Hon'ble Member(T)

PRESENT:

For the Applicant : Mr. Jaimin Dave, Adv.
For the Respondent : None

ORDER

The case is fixed for pronouncement of order.

The order is pronounced in open Court vide separate sheet.

-Sd-

AJAI DAS MEHROTRA
MEMBER (TECHNICAL)

-Sd-

DEEP CHANDRA JOSHI
MEMBER (JUDICIAL)

IN THE NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD BENCH-2

CA (CAA) 64/AHM/2022

[Under Sections 230 and 232 of the Companies Act, 2013 read with other applicable provisions of the Companies (Compromises, Arrangements, and Amalgamations) Rules, 2016 in the nature of compromise and arrangement with the Creditors and Shareholders of M/s Asis Logistics Limited]

In the matter of Scheme of Arrangement

OF

M/s Asis Logistics Limited
(Company under Liquidation)

And

Their Respective Shareholders and Creditors.

Coram:
DEEP CHANDRA JOSHI,
HON'BLE MEMBER (JUDICIAL)
AJAI DAS MEHROTRA,
HON'BLE MEMBER (TECHNICAL)

MEMO OF PARTIES

Mr. Devendra Padamchand Jain,
Liquidator of M/s Asis Logistics Limited
(Under Liquidation)

Having its registered office situated at
Top Floor, C/o Swati Jewelers,
Spring Field, Judges Bunglow Road,
Vastrapur, Ahmedabad,
Gujarat-380054. .... Applicant

Order Pronounced on: 12.04.2023

For the Applicant: Advocate, Mr. Jaimin Dave.

ORDER

1. The present application is filed by the Liquidator of M/s. Asis Logistics Limited *(Company under Liquidation) (hereinafter referred to as* ***"the Company"****)* under *Sections 230 and 232* of the *Companies Act, 2013* read with *Rule 3* of the *Companies (Compromises, Arrangements and Amalgamation) Rules, 2016* also read with *Regulation 2B* of the *Insolvency and Bankruptcy Board of India (Liquidation Process) Regulations, 2016* for the purpose of convening meetings of creditors and other stakeholders of the Company for considering a scheme of compromise between the Company and creditors and shareholders of the Company.

2. It is submitted that the registered office of the Company is situated in Valsad, Gujarat, hence, this Hon'ble Tribunal has the jurisdiction to adjudicate the present application.

3. It is submitted that the Company was incorporated on the 15th day of April 1972, under the relevant provisions of the *Companies Act, 1956* with the Registrar of Companies, Gujarat State at Ahmedabad bearing CIN: L51100GJ1972PLC036313 and currently having its registered address at Unit No. 611, Skylon Co-operative Housing Society, G.I.D.C. Char Rasta, Vapi, Valsad, Gujarat – 396 195. The Company is a public listed company. The authorised and paid-up share capital of M/s. Asis Logistics Limited *(Company under Liquidation)* as on 31st March 2019 is as under:

AUTHORISED SHARE CAPITAL	**(IN RUPEES)**
14,00,00,000 Equity Shares of Rs. 1/- each	₹ 14,00,00,000/-
61,00,000, 1% Redeemable Preference Shares of Rs. 100/- each	₹ 61,00,00,000/-
TOTAL	₹75,00,00,000/-

ISSUED, SUBSCRIBED AND PAID-UP SHARE CAPITAL	**(IN RUPEES)**
75,25,500 Equity Shares of Rs. 1/- each	₹ 75,25,500/-
60,27,182 1% Redeemable Preference Shares of Rs. 100/- each	₹60,27,18,100/-
TOTAL	₹61,02,43,600

4. It is submitted that the Company had availed various credit facilities from State Bank of India (*"SBI"),* Janakalyan Sahakari Bank Limited (*"JKSBL*"), Dena Bank (*"Dena*") and ICICI Bank Limited (*"ICICI").* The Company had defaulted in repayment of these debts. Hence, an Application being C. P. (I. B.) No. 148 /10/NCLT/AHM/2017 under *Section 10* of the *Insolvency and Bankruptcy Code, 2016 (hereinafter referred to as* ***"IBC, 2016"****)* was filed by the Corporate Applicant to initiate Corporate Insolvency Resolution Process against itself. The said Application was admitted by this Hon'ble Adjudicating Authority vide an order dated 11.01.2018. In the 7th CoC meeting dated 26.10.2018, it was unanimously resolved by CoC to liquidate the Corporate Applicant in view of non-receipt of any resolution plan(s). This Hon'ble Adjudicating Authority vide an order dated 28.08.2019 passed the liquidation order in I.A. being No. 461 of 2018 in C. P. (I. B.) No. 148 /10/NCLT/AHM/2017 wherein the Applicant was appointed as Liquidator and suggested the Liquidator to make sincere efforts to sell liquidating unit as a going concern.

5. It is submitted that within 90 *(ninety)* days from the date of the liquidation, a draft scheme of arrangement in the nature of compromise was received from promoters/ suspended management of the Company. The said draft scheme was placed before the stakeholders of the Company in the 2nd meeting held on 12.12.2019. That in the said meeting, all the stakeholders present, showed their interest in the scheme of arrangement in the nature of compromise and resolved to move an application before this Hon'ble Adjudicating Authority for approval of the scheme of compromise and arrangement. Hence, the Applicant filed an I.A. being No. 66 of 2020 in C. P. (I.B.) No. 148 of 2017 for approval of the scheme of arrangement. However, during the pendency of the said I. A. *Regulation 2B* of the *Insolvency and Bankruptcy Board of India (Liquidation Process) Regulations, 2016* was amended and proviso was inserted to *sub-regulation (1)* of *Regulation 2B* with effect from 06.01.2020.

6. It is submitted that under the said proviso, any person, who is not eligible under the IBC, 2016 to submit a resolution plan for insolvency resolution of the corporate debtor was not permitted to become a party in any manner to such compromise or arrangement. Hence, the scheme of arrangement in the nature of compromise submitted by the promoters/suspended management failed and the Applicant was constrained to withdraw the said I. A. being No. 66 of 2020 in C. P. (I. B.) No. 148 of 2017.

7. Thereafter, the Government of India (*"GoI"*) declared a nationwide complete lockdown initially for 21 *(twenty-one)* days

starting from 25.03.2020 in order to prevent spread of Covid-19 pandemic. That the said lockdown was extended by the GoI from time to time with a view to prevent the spread of Covid-19 pandemic.

8. It is submitted that soon after the lock down, the promotor group/ suspended management had filed an I. A. being No. 496 of 2020 in C. P. (I. B.) No. 148 of 2017 *inter alia* seeking permission of this Hon'ble Adjudicating Authority to allow the promotor group/ suspended management to submit a scheme of arrangement in accordance with the provisions of the IBC, 2016 and *Section 230-231* of the *Companies Act, 2013* on the pretext that vide circular dated 01.06.2020, the GoI has carried out certain amendments in the criteria for classification of Micro, Small and Medium Enterprises as per which the promotor group is eligible to propose a scheme of arrangement for revival of the Corporate Applicant. However, the said I. A. being No. 496 of 2020 in C. P. (I. B.) No. 148 of 2017 was dismissed by this Hon'ble Adjudicating Authority vide an order dated 15.10.2020.

9. It is submitted that since the period of 1 *(one)* year for completion of the liquidation process of M/s. Asis Logistics Limited *(Under Liquidation)* was getting expired on 18.11.2020, the Applicant herein had preferred an I. A. being No. 39 of 2021 in C. P. (I.B.) No. 148 of 2017 before this Hon'ble Adjudicating Authority for extension of liquidation period for further one year under *Regulation 44(2)* of the *Insolvency and Bankruptcy Board of India (Liquidation Process) Regulations, 2016.* That this Hon'ble Adjudicating Authority vide an order

dated 22.01.2021, had granted and extended 6 *(six)* months period for the purpose of completing the liquidation process of the Company.

10. It is submitted that in the meantime, on being aggrieved by the order dated 15.10.2020 passed in I. A. being No. 496 of 2020 in C. P. (I. B.) No. 148 of 2017, the promoter's group/ suspended management had preferred an appeal being Company Appeal (AT) (Insolvency) No. 1034 of 2020 under *Section 61* of the IBC, 2016, before the Hon'ble National Company Law Appellate Tribunal. That the Hon'ble NCLAT was pleased to allow the appeal filed by the promoters group/ suspended management vide an order dated 01.06.2021 holding thus:

> *"50. For the foregoing reasons and relied upon the Judgments of the Hon'ble Supreme Court and this Tribunal we are of the view that the Appellant being eligible to submit a scheme by virtue of an amendment to Section 7 of Micro, Small and Medium Enterprises Development Act, 2006 vide notification dated 01.06.2020. Accordingly, we set aside the impugned order dated 15.10.2020 passed by the Adjudicating Authority in I.A. No. 496 of 2020 in CP (IB) No. 148/NCLT/AHM/2017.*
>
> *51. We passed the following order:*
>
> *The Appellants are allowed to submit a scheme of arrangement to the liquidator of the Corporate Debtor and the liquidator shall consider the scheme of arrangement in accordance with the law.*
>
> *52. The Appellant/ Promoter to submit the scheme within the period of one week from the receipt of copy of this order and the same shall be considered by the liquidator in accordance with the law."*

11. It is submitted that on 08.06.2021, the promoter's group/ suspended management submitted a scheme of arrangement in

the nature of compromise under *Section 230* of the *Companies Act, 2013.* The said scheme was submitted within a period of one week from the date of the order dated 01.06.2021, as granted by the Hon'ble NCLAT in Company Appeal (AT) (Insolvency) No. 1034 of 2020. The aforementioned facts *vis-à-vis* order dated 01.06.2021 passed by the Hon'ble NCLAT and the scheme of compromise submitted by the promoters' group/ suspended management were placed before the stakeholder's consultation committee in the 7th meeting held on 15.06.2021 by the Applicant herein.

12. It is submitted that the Applicant herein had preferred Company Application (CAA) No. 63 of 2021 under *Section 230 – 232* as well as *Section 66* of the *Companies Act, 2013* read with *Rule 3* of the *Companies (*Compromises*, Arrangements and Amalgamation) Rules, 2016* also read with *Regulation 2B* of the *Insolvency and Bankruptcy Board of India (Liquidation Process) Regulations, 2016* for the purpose of convening meetings of creditors and other stake-holders of the Corporate Debtor for considering a scheme of compromise between the Company and creditors and shareholders of the Company.

13. That, vide an order dated 06.09.2021, this Hon'ble Tribunal was pleased to allow the said Company Application (CAA) No. 63 of 2021. It is submitted by the Applicant herein that he had received a certified copy of the said order dated 06.09.2021 on 08.09.2021, wherein the date of meetings of stakeholders was fixed on 07.10.2021. In view whereof, the Applicant herein was not in a position to comply with the statutory requirements of issuance, publication and circulation of notices to various stakeholders at least one month prior to the date of meeting.

Therefore, the Applicant herein was compelled to prefer a Company Application being No. 47 of 2021 in Company Application (CAA) No. 63 of 2021 under *Rule 15* read with *Rule 11* and *Rule 154* of the *National Company Law Tribunal Rules, 2016* seeking change in the date of convening of the meetings. The said Company Application being No. 47 of 2021 in Company Application (CAA) No. 63 of 2021 came to be allowed by this Hon'ble Tribunal vide an order dated 20.10.2021, whereby the meetings were allowed to be held at any date on or before 10.12.2021.

14. It is submitted that the Applicant herein had convened the meetings of all the stakeholders on 29.11.2021 and all the stakeholders except the secured financial creditors had duly voted upon the scheme. That the Applicant herein had also submitted the chairman's report *qua* the other stakeholders before this Hon'ble Tribunal. Though, the secured financial creditors had requested for further time so as to discuss the scheme with their internal authorities.

15. It is further submitted by the Applicant herein that thereafter he was in continuous follow-up with the secured financial creditors so as to complete the voting on the scheme of arrangement in the nature of compromise submitted by the promoters group/ suspended management. However, time and again, the secured financial creditors had requested the Applicant herein to allow them further time. That after due discussions and deliberations, the secured financial creditors had proposed the promoters group/ suspended management to make certain modifications in the scheme and submit a revised

scheme. The said proposal was duly accepted by the promoters group/ suspended management and a revised scheme came to be submitted on 30.05.2022.

16. It is submitted that the revised scheme so submitted by the promoters group/ suspended management was discussed thoroughly by the secured financial creditors in the 8th stakeholders' consultation committee meeting held on 24.06.2022. However, in the said meeting, the promoters group/suspended management were suggested to make some additional changes and were also advised that after confirmation by competent authorities of secured financial creditors, the final revised scheme shall be submitted before this Hon'ble Tribunal for permitting fresh voting on the scheme.

17. It is submitted that in the meantime, since the extended liquidation period was going to expire on 20.07.2022 and considering that the process till the final decision on the scheme by the secured financial creditors and thereafter, filing of an application for fresh voting on the revised scheme shall require a considerable amount of time, the stakeholders' consultation committee in its 8th meeting held on 24.06.2022 had unanimously agreed and consented to apply for extension of liquidation period before this Hon'ble Adjudicating Authority. In view whereof, on 14.07.2022, the Applicant herein had preferred an I.A. being No. 602 of 2022 in C. P. (I.B.) No. 148 of 2017 before this Hon'ble Adjudicating Authority under *Regulation 44* of the *Insolvency and Bankruptcy Board of India (Liquidation Process) Regulations, 2016* seeking an extension of the liquidation period for further 9 *(nine)* months. However,

vide an order dated 26.07.2022, this Hon'ble Adjudicating Authority had allowed the I.A. being No. 602 of 2022 in C. P. (I.B.) No. 148 of 2017 by granting 6 *(six)* months extension instead of 9 *(nine)* months *inter alia* directing the ex-management and stakeholders to take early decision and move appropriate application.

18. It is submitted that the aforementioned facts *vis-à-vis* order dated 26.07.2022 passed by this Hon'ble Adjudicating Authority and the broad outline of Scheme of Arrangement and the modifications submitted by the promoters group/ suspended management vide E-mails dated 27.06.2022 and 20.08.2022 were placed before the Stakeholders' Consultation Committee in the 9th meeting held on 12.09.2022. In the said meeting, the discussion with regard to filing of an application for fresh voting and directions before this Hon'ble Tribunal for the revised scheme submitted by the promoters group/ suspended management also took place.

19. It is submitted that there is no investigation instituted or pending in relation to the Company in Liquidation under *Chapter XIV* of the *Companies Act, 2013* or under the corresponding provisions of *Section 235 to 251* of the *Companies Act, 1956*. Further no proceedings are pending under the *Companies Act, 2013* or under the corresponding provisions of the *Companies Act, 1956* against the Company.

20. It is submitted that the Company is a non-banking financial institution, hence, notice to RBI is not required to be issued. It is also stated that the present scheme of arrangement is for the repayment of dues to the secured and unsecured creditor of the

Company that shall not be violating to the provisions of the Competition Act, 2002 and hence, notice to the Competition Commission of India is also not required.

21. It is submitted that the Company has submitted certificate of statutory auditor that provisions of Section 133 of the Companies Act, 2013 as followed. The Applicant Company has filed its audited financial statement as on 31st March 2019 and provisional balance sheet for the period from 01.07.2022 to 30.09.2022 and same is annexed with the application.

22. The Learned Counsel for the Applicant further states that the proposed revised scheme of compromise is received from 5 *(five)* related party guarantors/ promoters of the Company namely Mr. Mukesh Hariram Bansal, Mr. Rakeshkumar Agarwal, Mr. Sarvesh Agarwal, M/s. Dytel Finance and Investment Private Limited and M/s. Asis Industries Limited. It is submitted that Section 29A of IBC, 2016 will, even otherwise, not be attracted in as much as the Company has qualified to be an MSME in view of notification dated 01.06.2020 (**S.O. 1702 (E)**) amending *Section 7* of the *Micro, Small and Medium Enterprises Development Act, 2006*. Therefore, by virtue of *Section 240A* of IBC, 2016, the promoters group/ suspended management become eligible to submit scheme of compromise under *Section 230* of the *Companies Act, 2013*.

23. It is submitted that the financial proposal as provided in the scheme of compromise proposed by the promoters group/ suspended management (in brief) is as under:

"2. Financial Proposal

2.1 The Applicant shall pay an aggregate amount of up to INR 11.,82,23,072 (Indian Rupees Eleven Crore Eighty Two lakh Twenty-Three Thousand Seventy-Two) ('Financial Proposal') for the revival of the Company, payment of unpaid Liquidation Costs and repayment and settlement of Creditors. The brief details of Financial Proposal are as under:

a. Liquidation Costs to the extent of INR 15,00,000 (Indian Rupees Fifteen Lakhs) shall be paid (basis information provided by the Liquidator) and such Liquidation Costs shall be paid in priority over the amounts payable to the Financial Creditors. If there are any additional unpaid CIRP Costs or Liquidation Costs, basis the information provided by the Liquidator along with the relevant supporting documentation and details, the Applicant shall make payments towards such additional unpaid CIRP Costs or Liquidation Costs and to that extent, the Financial Proposal Amount may undergo a change;

b. An amount of upto INR 11,67,23,072 (Indian Rupees Eleven Crore Sixty Seven Lakh Twenty Three Thousand Seventy-Two) to be paid to the various classes of Creditors of the Company towards full and final settlement of their Claims as detailed in part III (Compromise and Arrangement with Creditors and Shareholders of the Company) of this scheme. Where the Alternative 2 for clause 3.1(d) is opted by relevant Secured Financial Creditor, the Financial Proposal Amount may undergo a change;

2.2 Terms of Preference Shares held by existing Preference Shareholders is proposed to be revised (including extended redemption period) as per provisions of this Scheme.

…."

24. It is submitted that no claims of the Workmen and Employees as well as Operational Creditors (other than statutory dues) have been admitted till date by the Applicant herein and there are no outstanding dues payable to them. As a result, the scheme of compromise does not provide for any sort of payment to the Workmen and Employees as well as Operational Creditors (other than statutory dues).

25. It is further submitted that the scheme of arrangement in the nature of compromise proposes to continue the listing of the Equity Shares of the Company under liquidation on the Stock Exchange in accordance with the terms provided under Part-IV of the Scheme. It is further submitted that the scheme provides that the liquidation value of the Equity Share Capital of the Company held by the Existing Equity Shareholders is NIL and accordingly, there would be no payout to the Public Shareholders. Though, the Public Shareholders shall continue to hold their respective existing Equity Shares.

26. Thus, as an integral part of the scheme and on approval from this Hon'ble Tribunal, the existing Equity Shares of the Company under liquidation shall continue their listing on the Stock Exchange without any further cost and act, deed, process or thing required to be done by the Company or Applicant or any other party forming part of the scheme.

27. It is further submitted that the approval of this scheme by this Hon'ble Tribunal shall be deemed as an approval for the continued listing of existing Equity Shares and revocation of suspension on trading of existing Equity Shares as well as issue and allotment of listing of Equity Shares, if any, issued to the proposers of the scheme from the Stock Exchange. Under the circumstances, approvals from Securities and Exchange Board of India ("SEBI") or Stock Exchange or any existing Equity Shareholders or any other regulator will not be required.

28. With respect to the Company, it is stated that:-

a. There are 75,25,500 Equity Shareholders and certificate from Chartered Accountant certifying the list of shareholders is annexed. The Applicant is seeking direction to convene the meeting of the Equity Shareholders for the purpose of considering and, if thought fit, approving with or without modification(s) to the scheme.

b. There are 10 Preference Shareholders and certificate from Chartered Accountant certifying the list of shareholders is annexed. The Applicant is seeking direction to convene the meeting of the Preference Shareholders for the purpose of considering and, if thought fit, approving with or without modification(s) to the scheme.

c. There are 4 Secured Financial Creditors and certificate from Chartered Accountant certifying the list of secured financial creditors is annexed. The Company is seeking to convene the meeting of secured financial creditors for

the purpose of considering and, if thought fit, approving with or without modification(s) to the scheme.

d. There are 2 Unsecured/Operational Creditors and certificate from Chartered Accountant certifying the list of Unsecured/Operational Creditors is annexed. The Company is seeking to convene the meeting of the Unsecured/Operational Creditors for the purpose of considering and, if thought fit, approving with or without modification(s) to the scheme.

29. Heard Learned Counsel of the Applicant and perused material available on record. It appears that the present application has complied with all the terms of Sections 230-232 of the Companies Act, 2013, and also as per the directions of Hon'ble NCLAT dated 01.06.2021, the proposed scheme is for the benefit of all the stakeholders. Moreover, the company shall survive after coming into effect of the proposed scheme of arrangement. Hence, the present application is allowed with following directions;

a. The meeting of the Equity Shareholders of the Company shall be convened on Friday, the 19th May, 2023, at 9:00 a.m.
b. The meeting of the Preference Shareholders of the Company shall be convened on Friday, the 19th May, 2023, at 11:00 a.m.
c. The meeting of the Secured Financial Creditors of the Company shall be convened on Friday, the 19th May, 2023, at 2:00 p.m.

d. The meeting of the Unsecured/Operational Creditors of the Company shall be convened on Friday, the 19th May, 2023, at 4:00 p.m.

e. The quorum of all the meetings of Company shall be as prescribed in the Companies Act, 2013 and Companies (Compromises, Arrangements and Amalgamations) Rules, 2016.

f. The venue of all the meetings of concerned stakeholders to be convened shall be at 'A' Wing, 2nd Floor, Mhatre Pen Bldg., Senapati Bapat Marg, Dadar (W), Mumbai – 400028, in the State of Maharashtra, India.

g. In view of *Section 230(4)* of the *Companies Act, 2013* read with *Rule 5* and *Rule 6* of the *Companies (Compromises, Arrangements and Amalgamations) Rules, 2016* and *Rules 20* and *22* of the *Companies (Management and Administration) Rules, 2014*, the Applicant is required to provide the facility of postal ballot to the Shareholders, Secured Financial Creditors and Unsecured/Operational Creditors of the Company. Accordingly, voting by Equity Shareholders, Preference Shareholders, Secured Financial Creditors and Unsecured/Operational Creditors of the Company to the scheme shall be carried out through postal ballot or polling paper at the venue of the meeting to be held on 19th May, 2023.

h. At least one month before 19th May, 2023, i.e., the date of aforesaid meetings, an advertisement about convening of the said meetings, indicating the day, date, place and time, as aforesaid, shall be published in 'Financial Express', English daily and 'Sandesh,

Gujarati daily, having wide circulation in the region where registered office of the company under liquidation is located. The publication shall indicate the time within which copies of the scheme shall be made available to the concerned persons free of charge from the office of the Applicant herein and also comply with *Section 102* of the *Companies Act, 2013.*

i. At least one month before 19th May,2023, i.e., the date of aforesaid meetings of shareholders, a notice in Form No. CAA.2 convening the said meeting indicating the day, date, place and time aforesaid, containing instructions with regard to postal ballot and e-voting (in case of shareholders) together with a copy of the scheme, a copy of the statement required to be furnished pursuant to *Section 102* read with *Sections 230 - 231* of the *Companies Act, 2013* and *Rule 6* of the *Companies (CAA) Rules, 2016* and the prescribed form of proxy shall be sent to each of the shareholders of the Company under Liquidation at their respective registered or last known address either by Registered Post or Speed Post / Airmail or by Courier or e-mail.

j. In addition, at least one month before the date of the aforesaid meetings of the secured and unsecured creditors to be held as aforesaid, a notice convening the said meetings, indicating the day, date, place and time, as aforesaid, together with a copy of the scheme, a copy of the statement required to be furnished pursuant to *Section 102* read with *Section 230 - 231* of the *Companies Act, 2013* and *Rule 6* of the *Companies (CAA) Rules, 2016* and the prescribed form or proxy shall be

sent to each of the secured as well as unsecured creditors of the Company under Liquidation at their respective registered or last known address either by Registered Post or Speed Post or by Courier or e-mail. The notice shall be sent to the secured creditors and the unsecured creditors (including debenture holders, if any) of the Company with reference to the list of the persons appearing on the record of the Company under Liquidation as on 31st March, 2019.

k. Mr. Yuvraj Thakore, Advocate is hereby appointed as the Chairperson of the aforesaid meetings to be held on 19th May, 2023 and in respect of any adjournment or adjournments thereof and who shall conduct such meetings as per the provisions of the *Companies Act, 2013* read with the *Companies (Compromise, Arrangement and Amalgamation) Rules, 2016.*

l. Mr. Amitkumar Agrawal, Chartered Accountant shall act as the scrutinizer of the aforesaid meeting and in respect of any adjournment thereof.

m. The number and value of equity shares of the equity shareholders, preference shares of the preference shareholders or the value of the debts of the secured and unsecured creditors, as the case may be, shall be in accordance with the records or registers of the Company under Liquidation and where the entries in the records or registers are disputed, the chairperson of the meeting shall determine the number of value, as the case may be, for purposes of the meetings.

n. The Chairperson to file an affidavit not less than 7 *(seven)* days before the date fixed for the holding of the

meetings and to report to this Hon'ble Tribunal that the directions regarding issuance of notices and advertisement of the meetings have been duly complied with as per *Rule 12* of *Companies (CAA) Rules, 2016*.

o. It is further ordered that the Chairperson shall, report to this Tribunal on the result of the meeting in Form No.CAA.4, verified by his affidavit, as per *Rule 14* of the *Companies (CAA) Rules, 2016* in Form No.CAA.4 within seven days.

p. An extension of time period for further 6 *(six)* months from the date of this order is granted for completing the process of compromise and arrangement of M/s. Asis Logistics Limited *(Under Liquidation)* in accordance with *Regulation 44(2)* of the *Insolvency and Bankruptcy Board of India (Liquidation Process) Regulations, 2016.*

q. In compliance of *sub-section (5)* of *Section 230* and *Rule 8* of the *Companies (CAA) Rules, 2016*, the Applicant shall send a notice of meeting under *sub-section (3)* of *Section 230* read with *Rule 6* of the *Companies (CAA) Rules, 2016* in Form No. CAA.3 along with a copy of the scheme of arrangement, the explanatory statement and the disclosures mentioned under *Rule 6*, to (i) the Central Government through the Regional Director, North Western Region, (ii) the Registrar of Companies, (iii) the Securities and Exchange Board of India, (iv) the Stock Exchange(s) and (v) the Income-tax authorities stating that representations, if any, to be made by them shall be made within a period of 30 days from the date of receipt of such notice, failing which it shall be presumed that they have no objection on the proposed

scheme. The said notices shall be sent forthwith after notice is sent to the members/ creditors of the Company under Liquidation by registered post or by speed post or by courier or by hand delivery, at the office of the authority as required by *sub-rule (2)* of *Rule 8* of the *Companies (CAA) Rules, 2016*.

30. This Company Application is allowed and stands disposed of accordingly.

31. Urgent certified copy of this order, if applied for, to be issued to all concerned parties upon compliance with all requisite formalities.

S/d-

AJAI DAS MEHROTRA
MEMBER (TECHNICAL)

S/d-

DEEP CHANDRA JOSHI
MEMBER (JUDICIAL)

RAHUL SINGH
LRA